# écentic — Customer Agreement Template (SaaS Subscription)

**TEMPLATE — Form fields in [BRACKETS] must be completed before execution.**

This Master Subscription Agreement (this "Agreement") is entered into as of [DATE] (the "Effective Date") between:

**(1) écentic shpk**, a limited liability company incorporated under Albanian Law No. 9901, with registered office at [REGISTERED ADDRESS], NIPT [NIPT NUMBER] ("écentic"); and

**(2) [CUSTOMER LEGAL NAME]**, a [JURISDICTION / ENTITY TYPE] with registered office at [CUSTOMER ADDRESS] ("Customer").

Each a "Party" and together the "Parties".

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## 1. Definitions

**"Service"** means the écentic software-as-a-service platform, including all features, modules, integrations, and documentation made available to Customer under the applicable Subscription Plan.

**"Subscription Plan"** means the plan selected by Customer from time to time (currently: Connect, Compete, Dominate, or Enterprise), as recorded in the Order Form or in-product checkout.

**"Customer Data"** means data, content, information, and materials uploaded by, or made available through, Customer's connected stores and systems.

**"Documentation"** means the user-facing documentation made available at ecentic.ai/docs.

**"Order Form"** means a written or electronic order specifying the Subscription Plan, term, fees, and any other commercial terms agreed by the Parties.

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## 2. The Service

### 2.1 Provision

écentic will make the Service available to Customer in accordance with this Agreement, the Documentation, and the applicable Subscription Plan during the term.

### 2.2 Subscription Plan

Customer's rights and limitations (including but not limited to user seats, simulation volume, number of competitors tracked, supported integrations, and support response targets) are determined by the active Subscription Plan. The current scope of each plan is described at ecentic.ai/pricing.

### 2.3 Use rights

Subject to this Agreement, écentic grants Customer a non-exclusive, non-transferable, non-sublicensable right during the term to access and use the Service for Customer's internal business operations.

### 2.4 Restrictions

Customer shall not (and shall not permit any third party to): (a) reverse-engineer or attempt to derive the source code of the Service; (b) use the Service to build a competing product; (c) resell, sublicense, or otherwise commercially exploit the Service except as expressly permitted; (d) introduce malicious code; or (e) use the Service in violation of applicable law.

### 2.5 Updates

écentic may from time to time update, modify, or enhance the Service. écentic will not materially diminish core functionality of any Subscription Plan during the term without notice.

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## 3. Customer Data and Integrations

### 3.1 Customer ownership

Customer retains all rights, title, and interest in and to Customer Data. Customer grants écentic a limited, non-exclusive, worldwide licence to host, copy, transmit, display, process, and modify Customer Data solely as necessary to provide the Service.

### 3.2 No model training

écentic will not use Customer Data, or any data derived therefrom that identifies Customer, to train any artificial intelligence model. This obligation flows through to écentic's sub-processors and is reflected in écentic's contractual commitments with model providers.

### 3.3 Aggregated data

écentic may compile aggregated and anonymized data ("Aggregate Data") derived from use of the Service, provided that such Aggregate Data does not identify Customer or any individual. Aggregate Data may be used by écentic to operate, analyze, and improve the Service and to publish benchmarks and industry reports.

### 3.4 Customer responsibilities

Customer is responsible for: (a) the accuracy and legality of Customer Data; (b) obtaining all necessary consents from any third parties whose data is processed through the Service; and (c) maintaining the confidentiality of its account credentials.

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## 4. Fees and Payment

### 4.1 Fees

Customer shall pay the fees set out in the Order Form or in the in-product checkout, in the currency specified.

### 4.2 Invoicing

Unless otherwise stated, fees are invoiced monthly in advance for monthly plans and annually in advance for annual plans. Annual plans receive the discount stated in the applicable pricing page or Order Form.

### 4.3 Payment terms

Invoices are due net thirty (30) days for invoiced customers; credit-card billed customers are charged on the renewal date. Late payments accrue interest at the lesser of (a) the European Central Bank main refinancing rate plus five percent (5%) per annum, and (b) the maximum permitted by applicable law.

### 4.4 Taxes

Fees are exclusive of any value-added tax, sales tax, or other taxes that may apply. Customer is responsible for all such taxes, except taxes based on écentic's net income.

### 4.5 Suspension for non-payment

écentic may suspend the Service for non-payment after thirty (30) days' written notice. Customer Data will be retained during suspension and for a further ninety (90) days following termination, subject to Section 9.

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## 5. Term and Termination

### 5.1 Term

The initial term is set out in the Order Form. Monthly subscriptions auto-renew month-to-month until cancelled. Annual subscriptions auto-renew for additional twelve-month periods unless either Party gives written notice of non-renewal at least thirty (30) days before the end of the then-current term.

### 5.2 Termination for cause

Either Party may terminate this Agreement on written notice if the other Party materially breaches this Agreement and fails to cure such breach within thirty (30) days of written notice of the breach.

### 5.3 Termination for convenience

Customer may cancel monthly subscriptions at any time effective end-of-month. Annual subscriptions may not be terminated for convenience during the paid period; pro-rated refunds are not available except where required by applicable consumer law.

### 5.4 Effect of termination

Upon termination: (a) Customer's right to access the Service ceases; (b) écentic will retain Customer Data for ninety (90) days, during which Customer may request export in a structured machine-readable format; (c) after ninety (90) days écentic will delete Customer Data, except for backups retained per écentic's standard backup-retention policy and any data legally required to be retained.

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## 6. Confidentiality

Each Party shall hold the other Party's Confidential Information in strict confidence, use it solely for the purposes of this Agreement, and protect it with at least the same degree of care it uses for its own Confidential Information (and in no event less than a reasonable standard). "Confidential Information" means non-public information identified as confidential or that a reasonable person would understand to be confidential. Confidential Information does not include information that is or becomes public other

than through breach, was independently developed, or was lawfully received from a third party without restriction. Confidentiality obligations survive termination for three (3) years.

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## 7. Security; Data Protection

### 7.1 Security

écentic maintains commercially reasonable technical and organizational measures designed to protect Customer Data, including encryption in transit (TLS 1.2+) and at rest (AES-256), least-privilege access controls, multi-factor authentication on production access, audit logging, and routine vulnerability management. écentic is engaged in a SOC 2 Type I audit (target completion Q3 2026).

### 7.2 Data protection

If écentic processes personal data on behalf of Customer, the Parties shall enter into a Data Processing Addendum incorporating the European Commission's Standard Contractual Clauses (Module 2 — controller to processor) as required. The current DPA is available at ecentic.ai/legal/dpa.

### 7.3 Breach notification

écentic will notify Customer without undue delay (and in any event within seventy-two (72) hours of confirmed determination) following the discovery of a Personal Data Breach involving Customer Data.

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## 8. Warranties; Disclaimers

### 8.1 Mutual warranties

Each Party warrants that (a) it has the corporate authority to enter into and perform this Agreement, and (b) its execution and performance does not violate any law or third-party right.

### 8.2 Service warranty

écentic warrants that the Service will perform materially in accordance with the Documentation during the term. As Customer's exclusive remedy for breach of this warranty, écentic will use commercially reasonable efforts to correct the non-conforming Service or, if it fails to do so within a reasonable time, refund pre-paid fees applicable to the non-conforming portion of the term.

### 8.3 Disclaimer

EXCEPT AS EXPRESSLY PROVIDED, THE SERVICE IS PROVIDED "AS IS" AND ÉCENTIC DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

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## 9. Limitation of Liability

EXCEPT FOR (a) BREACH OF SECTION 2.4 (RESTRICTIONS), (b) BREACH OF SECTION 6 (CONFIDENTIALITY), (c) GROSS NEGLIGENCE OR WILFUL MISCONDUCT, OR (d) AMOUNTS

OWED UNDER SECTION 4 (FEES), NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, REVENUE, OR DATA, EVEN IF ADVISED OF THE POSSIBILITY. EACH PARTY'S TOTAL CUMULATIVE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE FEES PAID OR PAYABLE BY CUSTOMER TO ÉCENTIC IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

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## 10. Indemnification

### 10.1 By écentic

écentic shall defend Customer against any third-party claim that Customer's use of the Service in accordance with this Agreement infringes a third party's intellectual property right, and indemnify Customer against damages finally awarded.

### 10.2 By Customer

Customer shall defend écentic against any third-party claim arising out of (a) Customer Data, (b) Customer's breach of Section 3.4 or Section 2.4, or (c) Customer's use of the Service in violation of applicable law, and indemnify écentic against damages finally awarded.

### 10.3 Procedure

Indemnification is conditioned on (a) prompt written notice of the claim, (b) the indemnifying Party's sole control of defence and settlement (except that no settlement may impose obligations on the indemnified Party without consent), and (c) reasonable cooperation of the indemnified Party.

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## 11. Governing Law; Disputes

This Agreement shall be governed by the laws of the Republic of Albania. The Parties submit to the exclusive jurisdiction of the competent courts of Tirana, Republic of Albania, for any dispute not subject to arbitration. The Parties may by mutual written agreement elect to resolve disputes by binding arbitration at the Mediation and Arbitration Centre of the Chamber of Commerce and Industry of Tirana.

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## 12. General

**Entire agreement.** This Agreement (together with the Order Form and any DPA) constitutes the entire agreement and supersedes all prior agreements.

**Order of precedence.** In the event of conflict, the Order Form governs over the body of this Agreement; this Agreement governs over the Documentation.

**Amendment.** Any amendment must be in writing and signed by both Parties (electronic signature acceptable).

**Assignment.** Neither Party may assign this Agreement without the other Party's prior written consent, except in connection with a merger, acquisition, or sale of substantially all assets.

**Notices.** Notices must be in writing to the addresses set forth in this Agreement (or as updated by written notice).

**Force majeure.** Neither Party is liable for delay or failure caused by events beyond reasonable control, provided prompt notice is given and reasonable mitigation is undertaken.

**Counterparts.** This Agreement may be executed in counterparts, including electronic, each of which is deemed an original.

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IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

**écentic shpk** By: _____ Name: [SIGNATORY NAME] Title: [TITLE] Date: _____

**[CUSTOMER LEGAL NAME]** By: _____ Name: [SIGNATORY NAME] Title: [TITLE] Date: _____